

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

IMPACT PRODUCTS, LLC AND SAFETY ZONE, LLC,
Complainants

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED, *Respondents*.

DOCKET NO. 24-08

Served: June 28, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SECOND SCHEDULING ORDER

On February 14, 2024, the Commission issued a Notice of Filing of Complaint and Assignment ("Notice") for this proceeding. Complainants Impact Products, LLC and Safety Zone, LLC ("collectively, "Complainants") allege that Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, "Respondents" or "OOCL") violated 46 U.S.C. §§ 41102(c) and 41104(a)(10) and 46 C.F.R. § 545.5 by assessing detention, demurrage, per diem, and yard storage charges that were not just or reasonable.

On March 8, 2024, OOCL filed a Motion to Dismiss. On May 20, 2024, Complainants filed an Amended Complaint, and consequently, the Motion to Dismiss was denied as moot on June 3, 2024. The parties were ordered to file a Joint Status Report ("JSR") with a proposed schedule that completed discovery within 150 days of the filing of the Answer on June 7, 2024.

On June 17, 2024, the parties filed a JSR with proposed discovery and briefing schedule. Because the discovery schedule was impacted by the motion to dismiss, which similarly affected filing an answer, the deadline for completing discovery is now November 4, 2024, which the parties propose as the close of discovery and which is reasonable. Typically, Complainants' initial brief would be due four weeks after the close of discovery, which would be the Monday after a holiday. It appears the parties request more time as a result of the holiday weekend, extending the proposed due date to December 6, 2024, 4 business days later. Extending the same courtesy to Respondent results in their opposition brief being due on January 9, 2025 (four weeks after December 6, 2024, plus 4 additional business days). Complainants' reply brief will be due two weeks later. The Commission has set the due date for the Initial Decision in this case as February 14, 2025, so there is no room for extensions of time. Absent the parties agreeing to a shortened period of discovery and submitting their briefs earlier, the schedule is likely to remain unchanged from the below.

Accordingly, the parties are hereby **ORDERED** to follow this schedule (dates identified by the parties that have passed are not included in this order):

July 3, 2024	Parties may serve initial written discovery requests
July 29, 2024	Complainant to identify expert witnesses, if any
August 5, 2024	Parties to serve objections and responses to written discovery requests
August 23, 2024	Depositions of fact witnesses may begin to be noticed
August 26, 2024	Complainant to serve initial expert reports, if any
September 2, 2024	Respondent to identify rebuttal expert witnesses, if any
September 19, 2024	Expert depositions may begin to be noticed, if any
September 30, 2024	Respondent to serve rebuttal expert reports, if any.
October 1, 2024	Last date to serve supplemental written discovery requests
October 24, 2024	Parties to serve objections and responses to supplemental written discovery requests
November 4, 2024	Complete depositions of Fact and Expert Witnesses
November 4, 2024	Close of discovery.
December 6, 2024	Complainant's brief, proposed findings of fact, and appendix.
January 9, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
January 23, 2025	Complainant's reply brief and responses to proposed findings of fact.

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Any filing submitted without page numbers, including on exhibits, may be rejected. Parties must follow the instructions in the Initial Order, including the requirements for

submitting confidential information. Parties may be required to refile any documents that do not follow the requirements below or in the Initial Order.

The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e). The brief should cite to evidence in the appendix using the required sequential numbers (see below).
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact, e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins, and each exhibit should be clearly identified, for example, by a cover sheet or bookmark;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and

e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.



Linda S. Harris Crovella
Administrative Law Judge